



CHAPTER lxx.

An Act to authorise the South Staffordshire Waterworks Company to extend their limits of supply to construct new works to raise additional capital and for other purposes. A.D. 1915.
[29th July 1915.]

WHEREAS the South Staffordshire Waterworks Company (in this Act referred to as "the Company") were incorporated by the South Staffordshire Waterworks Act 1853 and by that Act were empowered to construct works and to supply water within the limits thereby prescribed:

And whereas further powers in relation to their undertaking including the construction of waterworks and the raising of capital were conferred upon the Company by—

The South Staffordshire Waterworks Amendment Act 1857;
The South Staffordshire Waterworks Amendment Act 1864;
The South Staffordshire Waterworks Act 1866;
The South Staffordshire Waterworks Act 1875;
The South Staffordshire Waterworks Act 1878;
The South Staffordshire Waterworks Act 1893;
The South Staffordshire Waterworks Order 1901;
The South Staffordshire Waterworks Act 1909; and
The South Staffordshire Waterworks Act 1913:

And whereas it is expedient that the limits of the Company for the supply of water should be extended so as to include the parishes in this Act mentioned:

And whereas owing to the increasing demand for the supply of water the construction of further works is necessary to enable the Company to meet such demand and to supply in the limits

A.D. 1915. of supply as extended by this Act and it is therefore expedient
that the Company should be empowered to make and maintain
the works and to acquire the lands and rights hereinafter
respectively described :

And whereas under and by virtue of the said Acts and
Order the Company were authorised to raise or issue capital
amounting in the whole to the sum of one million two hundred
and sixty thousand pounds and in addition were authorised to
borrow on mortgage sums not exceeding in the whole three
hundred and thirty-two thousand five hundred pounds :

And whereas the said sums which the Company were autho-
rised to borrow on mortgage have by reason of the purchase by
the Company of lands in consideration of the payment by the
Company of rentcharges been reduced by an amount of fifteen
thousand seven hundred and forty pounds :

And whereas the Company have raised (including premiums)
the sum of one million two hundred and forty-two thousand six
hundred and fifty-one pounds by the issue of the following
stock (namely) two hundred and twenty-five thousand pounds
ordinary stock Class A entitled to a maximum dividend at the
rate of ten pounds per centum per annum and four hundred
and ninety thousand two hundred and forty pounds ordinary
stock Class B entitled to a maximum dividend at the rate of
seven pounds per centum per annum and three hundred and
fifty-six thousand three hundred pounds preference stock six
thousand two hundred and fifty pounds whereof is entitled to
a dividend at the rate of four pounds per centum per annum
and the remainder of which preference stock is entitled to a
dividend at the rate of five pounds per centum per annum :

And whereas the Company have created and issued debenture
stock entitled to interest at the rate of four pounds per
centum per annum to the nominal amount of two hundred and
seventy-six thousand nine hundred and sixty-nine pounds and
have raised thereby (including premiums) the sum of two
hundred and ninety-eight thousand seven hundred and seventy
pounds :

And whereas it is expedient that further powers should be
conferred upon the Company with respect to the raising of
additional capital and the borrowing of further moneys or the

issuing of further debenture stock and the other matters in this Act contained: A.D. 1915.

And whereas plans and sections of the works authorised by this Act showing the lines and levels thereof and a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Stafford and those plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the South Staffordshire Waterworks Act 1915 and the South Staffordshire Waterworks Acts and Order 1853 to 1913 and this Act may be cited together as the South Staffordshire Waterworks Acts and Order 1853 to 1915 and each of those Acts and Order is hereinafter referred to separately as the Act or Order of the year in which the same was passed. Short and collective titles.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of general Acts.

The Waterworks Clauses Acts 1847 and 1863 (except the words “with the consent in writing of the owner or “reputed owner of any such house or of the agent of “such owner” in section 44 of the Waterworks Clauses Act 1847):

The Lands Clauses Acts:

Provided always that notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 any question of disputed compensation under this Act or any Act incorporated herewith (other than a question

A.D. 1915.

required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the Board of Trade on the application of either party :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely):—

The transfer or transmission of shares ;

The borrowing of money by the Company on mortgage or bond ;

The making of dividends ; and

The giving of notices ;

And the said provisions shall so far as the same are respectively applicable apply to any ordinary and preference stock to be issued under the powers of this Act :

Parts II and III (relating respectively to additional capital and debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof And in the application of those provisions to this Act the term "railway" shall mean the wells and pumping stations by this Act authorised and so much of the lines of pipes by this Act authorised as will not be constructed in a highway and the expression in such provisions "centre of the railway" shall mean the outside of the said wells and pumping stations respectively and the centre lines of so much of any such lines of pipes as aforesaid.

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts in whole or in part incorporated herewith have the same respective meanings And—

The expression "the undertaking" means the undertaking of the Company as authorised by the South Staffordshire Waterworks Acts and Order 1853 to 1915 ;

The expression "the new waterworks" means the works described or referred to in the section of this Act the marginal note whereof is "Power to make new works"; A.D. 1915.

The expression "the limits of supply" means the limits within which the Company are authorised to supply water under the South Staffordshire Waterworks Acts and Order 1853 to 1915;

The expression "the Wolverhampton Corporation" means the mayor aldermen and burgesses of the borough of Wolverhampton;

The expression "local authority" means the council of any county or borough or of any urban or rural district; and

The expression "the directors" means the directors of the Company.

4. The limits within which the Company may supply water and exercise the powers rights privileges and authorities conferred upon them by the South Staffordshire Waterworks Acts and Order 1853 to 1915 shall extend to and include in addition to the existing limits of supply of the Company the following limits (in this Act referred to as "the new limits") (that is to say) The parishes of Kinvaston Penkridge Teddesley Hay Hatherton Saredon Cheslyn Hay and Great Wyrley the detached portion of the parish of Shareshill and so much of the parish of Brewood as lies to the east of the site of the lines of pipes (Work No. 2 and Work No. 4) as shown on the deposited plans between the bridge over the River Penk known as Somerford Bridge and the point where the boundary of the parish of Featherstone crosses the highway leading from Slade Heath to Featherstone (including the whole of the highways in which the said lines of pipes between the points aforesaid may be laid) and to the east of that part of the River Penk which extends from Somerford Bridge to the point where the northern boundary of the parish of Brewood is crossed by the bridge carrying Watling Street over the said river all in the rural district of Cannock in the county of Stafford and within and throughout the limits of supply the South Staffordshire Waterworks Acts and Order 1853 to 1915 shall henceforth be in full force and have effect. Extension of limits of supply.

5. If after the expiration of seven years from the passing of this Act the Company are not furnishing or prepared on Where Company do not furnish a

A.D. 1915.
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sufficient
supply local
authority or
company
may supply.

demand to furnish a sufficient supply of water at the rates and charges authorised by section 34 of the Act of 1853 and on such terms and conditions pecuniary or otherwise in addition to such rates and charges as shall be reasonable having regard to all the circumstances of the case in any part of the district of any local authority included within the new limits the local authority of any such district may provide a supply in the whole or any part of their district within the new limits not sufficiently supplied by the Company in accordance with the provisions of the Public Health Act 1875 or the local authority or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Company and for the repeal of the powers of the Company in that behalf.

If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district or as to whether any such terms or conditions are reasonable such difference shall be settled by an arbitrator to be appointed on the application of either party by the Board of Trade.

Power to
make new
works.

6. Subject to the provisions of this Act the Company may in the county of Stafford and in the lines and situation and according to the levels shown on the deposited plans and sections make and maintain the works hereinafter described (that is to say):—

Work No. 1 A well and pumping station to be situate in the parish of Brewood in the enclosures numbered 367 368 and 388 or some or one of them on the $\frac{1}{2500}$ Ordnance map (second edition 1902) of that parish:

Work No. 2 A line or lines of pipes commencing at the said well and pumping station (Work No. 1) and terminating in the said parish of Brewood by a junction with the line or lines of pipes (Work No. 4) hereinafter described at a point in the road from Four Ashes to Wolverhampton two chains or thereabouts measured in a south-easterly direction along the said road from the occupation road leading therefrom to Aspley Farm:

Work No. 3 A well and pumping station to be situate in the said parish of Brewood in the enclosures numbered 1584 1639 1640 1642 1643 1644 1660 1661 1662 1663

and 1669 or some or one of them on the $\frac{1}{2500}$ Ordnance A.D. 1915.
map (second edition 1902) of that parish:

Work No. 4 A line or lines of pipes commencing at the said well and pumping station (Work No. 3) and terminating in the parish and county borough of Walsall by a junction with the existing main of the Company in the road leading from Cannock to Walsall at the junction of that road with the road leading from Bloxwich to Wolverhampton.

In addition to the foregoing works the Company may upon the said lands make and maintain all such cuts channels catchwaters tunnels adits pipes conduits culverts drains sluices byewashes shafts wells bores water-towers overflows waste-water channels gauges filter-beds tanks banks walls bridges embankments piers approaches engines machinery and appliances as may be necessary or convenient in connection with or subsidiary to the undertaking.

7. The well and borehole of Work No. 1 and of Work No. 3 shall be effectually lined or cased by the Company for such a depth and in such a manner as will secure that in the case of the well (Work No. 1) no water shall be drawn into the well or borehole from any stratum above the lower half of the Keuper sandstone and in the case of the well (Work No. 3) no water shall be drawn into the well or borehole from the upper portion of the Bunter sandstone. As to lining of new wells.

8. In the construction of the new waterworks the Company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding three feet upwards and to any extent downwards Provided as follows (that is to say):— Limits of deviation.

Except for the purposes of crossing over a stream dyke or watercourse no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

9. Subject to the provisions of this Act the new waterworks shall for all purposes whatsoever form part of and be comprised in the undertaking. Works to form part of undertaking.

A.D. 1915.

Power to
take waters.

10. Subject to the provisions of this Act the Company may pump collect impound take use divert and appropriate for the purposes of the undertaking all streams springs and waters which will or may be taken or intercepted by any of the new waterworks.

Period for
completion
of works.

11. If the new waterworks are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making of the said waterworks or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed but nothing in this section contained shall restrict the Company from at any time extending enlarging deepening altering renewing or removing any of the new waterworks or increasing or improving their supply of water or from exercising any of the powers with respect to the construction of works conferred by the Acts incorporated with this Act from time to time as occasion may require.

Power to
acquire
lands.

12. Subject to the provisions of this Act the Company may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the new waterworks.

Period for
compulsory
purchase of
lands.

13. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

As to private
rights of way
over lands
taken com-
pulsorily.

14. All private rights of way over any lands which may under the powers of this Act be acquired compulsorily shall as from the date of the acquisition of such lands be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Acquisition
of lands by
agreement.

15. In addition to any other lands which the Company are by the South Staffordshire Waterworks Acts and Order 1853 to 1915 authorised to purchase or acquire the Company may by agreement purchase or take leases of and hold for the purposes of the undertaking any further lands not exceeding in the whole ten acres in extent or any easement (not being an easement of water in which persons other than the grantors have an interest) in over or under any such lands and may also by agreement

purchase or take leases of and hold any lands which they may deem necessary for the purpose of preventing the fouling of the water of any stream flowing into any of the waterworks of the Company or for the protection of such waterworks against nuisances encroachment pollution fouling contamination or injury and for any of such purposes may hold any of such lands and so long as any lands shall be so held they shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts But the Company shall not create or permit any nuisance on any such lands and shall not erect buildings on such lands except such as are required for or are connected with or incident to the purposes of the undertaking.

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16. The Company may by agreement purchase or take on lease houses cottages and buildings for persons in their employ and offices and other buildings for the purposes of the undertaking and may erect maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company.

Dwelling-houses for persons in Company's employ.

17. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act or the undertaking in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

18.—(1) The Company may in lieu of acquiring any lands for the purposes of the new waterworks where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof And the provisions of the Lands Clauses Acts shall subject to the provisions of this Act apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

Power to acquire easements in lieu of lands.

(2) As regards any lands in respect of which the Company have acquired easements only under the provisions of this section

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Act, 1915.

A.D. 1915. the Company shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Company to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Reservation
of water
rights on
sale.

19. The Company on selling any lands purchased or acquired by them in connection with the undertaking and not required for the purposes thereof may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Limiting
powers of
Company to
abstract
water.

20. The Company shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Provision
where exist-
ing wells
affected.

21.—(1) If it shall be proved by the owner (which term in this section includes any lessee or occupier) of any private well existing at the date of the passing of this Act as an effective source of supply and situate within a radius of two miles from either of the pumping stations (Works Nos. 1 and 3) by this Act authorised that the pumping by the Company at such pumping station has caused through no default of the owner any diminution of the supply in such private well the Company shall upon the written request of such owner afford to such owner a supply of water equal to the amount of such diminution as so proved upon such terms which failing agreement shall be settled by arbitration as will having regard to any disadvantage sustained or benefit derived by such owner from

the substitution of the new for the old supply place him in a position as nearly as may be as favourable as that enjoyed by him immediately before such diminution took place Provided that the owner shall grant to the Company free of cost any necessary wayleaves for the purpose of affording any such supply as aforesaid. A.D. 1915.

(2) The Company may if they think fit in lieu of affording a supply of water equal to the diminution of the supply in such private well deepen such private well or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution and the owner shall without making any charge therefor give the Company access and every facility for carrying out such deepening borings or headings.

(3) The Company may if they think fit in lieu of affording or increasing any supply under the foregoing provisions of this section make compensation in money to the owner for such diminution and they shall also make like compensation for any injury caused to the owner by the exercise by the Company of the powers conferred by the last preceding subsection the amount of such compensation to be settled in case of difference by arbitration as hereinafter provided.

(4) The Company shall not be liable in respect of any claim made by the owner under this section if the owner shall have failed upon a written request made to him to afford to the officers servants or other representatives of the Company at all reasonable times after the passing of this Act access to the well in respect of which the claim is made for the purpose of ascertaining particulars thereof and the level of the water therein.

(5) For the purpose of affording a supply of water under this section the Company may supply water beyond the limits of supply and carry out all such works within or beyond such limits as may be necessary for that purpose.

(6) Any question or dispute arising under this section shall be referred to and determined by arbitration in manner provided by the Arbitration Act 1889 or any statutory modification thereof for the time being in force.

22. Notwithstanding anything in this Act contained the following provisions shall unless otherwise agreed in writing

For protec-
tion of
Somerford

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Act, 1915.

A.D. 1915. have effect for the protection of Francis Monckton his heirs
and Stretton and successors in estate and assigns for the time being entitled
Estates and in possession whether for life or any greater estate to the
of Chilling- estates known as the Somerford and Stretton Estates and also
ton Estate. for the protection of Walter Thomas Courtenay Giffard his heirs
 successors in estate and assigns for the time being entitled in
 possession whether for life or any greater estate to the estate
 known as the Chillington Estate (all of whom are hereinafter
 in this section referred to as "the owner") in respect of the
 lands comprised within the said estates:—

- (1) As soon as reasonably practicable after a request in writing from the owner to the Company the Company shall afford in perpetuity a constant supply of water unless prevented by frost unusual drought or other unavoidable cause or accident for all purposes for any house building or premises on such estates within two miles of the wells and pumping stations (Work No. 1 and Work No. 3) by this Act authorised for which house building or premises the Company shall not be under any obligation with reference to affording a supply of water or otherwise in pursuance of the section of this Act whereof the marginal note is "Provision where existing wells affected" (as modified and applied by the next succeeding section of this Act) at rates and charges not exceeding seventy per centum of the rates and charges for the time being charged by the Company for a corresponding supply within the limits of supply and shall forthwith provide lay and maintain all mains and apparatus necessary or proper for the purpose of affording such supply Provided that any such request shall not be binding upon the Company unless and until the owner shall undertake with the Company in writing to pay to the Company from time to time in addition to the water rates payable to the Company in respect of the supply of water by means of such mains and apparatus such annual sum or sums (if any) as may be necessary to increase the aggregate amount of such water rates in each year for a period of ten years from the date of such undertaking to an amount equivalent to five per centum upon the capital cost of constructing any

mains and apparatus which it may be necessary for the Company to lay for the purpose of affording such supply: A.D. 1915.

- (2) For the purpose of affording a supply of water under this section the Company may supply water beyond the limits of supply and carry out all such works within or beyond such limits as may be necessary for that purpose and the owner shall grant to the Company free of cost any necessary wayleaves for the purpose of affording any such supply:
- (3) The Company shall during the operation of laying pipes along the public roads adjoining the estates of the owner obstruct such roads as little as possible and shall carry out their operations in such a manner as to ensure that access to the said estates is at all times available.

23. For the further protection of "the owner" as defined in the last preceding section of this Act and also for the protection of any lessee or occupier of any well spring or stream on any part of the said Somerford and Stretton Estates or the Chillington Estate and situate within a radius of two miles from either of the pumping stations (Works Nos. 1 and 3) by this Act authorised (all of whom are hereinafter in this section included in the expression "the owner") the following provisions shall apply and have effect:—

For further protection of Somerford and Stretton Estates and of Chillington Estate.

- (1) The provisions of the section of this Act of which the marginal note is "Provision where existing wells affected" shall extend and apply to any well spring or stream of the owner existing at the date of the passing of this Act as an effective source of supply:
- (2) In the event of the deepening of any well or any borings or headings therefrom carried out under the provisions of subsection (2) of the last-mentioned section of this Act as extended by this section increasing the cost of obtaining or continuing to obtain such a supply of water as is in that subsection referred to the Company shall pay to the owner the amount of such increase of cost.

24. The provisions of section 23 (except subsection (1)) of the Act of 1909 shall so far as the same are applicable extend

For protection of county coun-

A.D. 1915.
cil of Staf-
ford.

and apply to and enure for the protection of the county council of Stafford with respect to the works by this Act authorised in the same manner and to the same extent as if the said provisions were re-enacted in this Act in relation to such works:

Provided that subsection (13) of the said section shall not apply to Work No. 2 or Work No. 4 by this Act authorised unless or until the Company shall supply water to consumers from the said works respectively by means of service pipes connected therewith and that no hydrants shall without the consent in writing of the Wolverhampton Corporation be fixed or used pursuant to the said subsection in any part of so much of the said Work No. 4 as is situate in a road outside the limits of supply and in or adjoining which the said corporation shall have laid a main from which they shall be able and willing to furnish to the said county council a supply of water for the purposes mentioned in the said subsection at the rates and charges current within the area of supply of the said corporation.

For protec-
tion of Wol-
verhampton
Corporation.

25. The Company before affording a supply of water to any person who may be or become entitled under this Act to such supply within the limits for the supply of water of the Wolverhampton Corporation shall give notice to that corporation with full particulars of the supply to be so afforded and if within one month after the receipt of such notice the Wolverhampton Corporation give notice to the Company and to the person so to be supplied with water (in this section referred to as "the owner") that they will afford such supply of water such supply shall be afforded by the Wolverhampton Corporation instead of by the Company and thereupon the following provisions shall apply and have effect:—

- (1) The Wolverhampton Corporation shall with all reasonable despatch after giving such notice to the Company cause pipes to be laid down and water to be brought to the place to which the supply is to be given and shall supply water in accordance with the obligations of the Company under this Act Provided that—

(A) The owner shall grant to the Wolverhampton Corporation free of cost any necessary wayleaves for the purpose of affording such supply;

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(B) The Company shall repay to the Wolverhampton Corporation the expenditure incurred by that corporation in constructing and laying down the communication pipes and works for bringing water from the nearest main of the Wolverhampton Corporation to the place to which the supply is to be given;

(c) The Wolverhampton Corporation shall not be entitled to require the agreement referred to in section 139 of the Wolverhampton Improvement Act 1869 but they shall be entitled to be paid by the Company in respect of such supply an amount equivalent to the water rents or sums which would have been payable if such supply had been afforded by the Wolverhampton Corporation under the Acts relating to the supply of water by that corporation and in addition thereto for a period of ten years from the commencement of a supply of water from any mains and apparatus which it may be necessary for the Wolverhampton Corporation to construct and lay down for the purpose of affording a supply under this section such annual sum or sums (if any) as may be necessary to increase the aggregate amount of the water rents or sums payable in each year in respect of the supply of water from such mains and apparatus to an amount equal to five per centum upon the capital cost of constructing and laying down such mains and apparatus (other than the communication pipes and works referred to in paragraph (B) of this subsection);

(D) The owner shall not be under any obligation to make any payment to the Wolverhampton Corporation but shall pay to the Company such sum or sums (if any) as he would have been liable to pay to the Company if such supply as aforesaid had been afforded by the Company in accordance with the provisions of this Act:

- (2) If the Company shall give a supply of water under the provisions of this Act within the limits for the supply of water of the Wolverhampton Corporation that corporation may at any time by not less than three

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months' notice require the Company to sell and thereupon the Company shall sell to the Wolverhampton Corporation any mains pipes and works situate within those limits and used solely for the purposes of such supply and the Wolverhampton Corporation shall pay therefor the then value of such mains pipes and works:

Notice of the intention of the Wolverhampton Corporation to require the Company to sell such mains pipes and works and also notice of the completion of the purchase thereof shall be given by the Wolverhampton Corporation to the owner:

Upon the completion of the purchase the foregoing provisions of this section (except paragraph (B) of subsection (1) thereof) shall apply with any necessary modifications as if the Wolverhampton Corporation had given notice to the Company under such provisions:

- (3) Where any notice under this section requires authentication by the Wolverhampton Corporation the signature of their town clerk or other duly authorised officer shall be sufficient authentication and any notices under this section may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice shall be delivered or sent by post addressed to the secretary of the Company at their principal office or place of business:
- (4) The Company the Wolverhampton Corporation and the owner may enter into and carry into effect agreements varying the provisions of this section but no agreement under this section shall affect the rights of any person not a party to the agreement without his consent:
- (5) Save in so far as may be expressly provided by this section nothing contained in this section shall be deemed to prejudice any rights conferred upon the owner by the sections of this Act of which the marginal notes are "Provision where existing wells affected" "For protection of Somerford and Stretton

“ Estates and of Chillington Estate ” and “ For
“ further protection of Somerford and Stretton Estates
“ and of Chillington Estate.”

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26. The following provisions for the protection of the mayor aldermen and burgesses of the borough of Walsall (in this section referred to as “the corporation”) shall unless otherwise agreed in writing between the Company and the corporation apply and have effect (that is to say):—

For protec-
tion of Wal-
sall Corpora-
tion.

- (1) The aqueduct (Work No. 4) by this Act authorised so far as it will be constructed within the said borough (which portion of aqueduct is in this section referred to as “the said work”) shall be constructed and laid under the superintendence (if the same be given) and to the reasonable satisfaction of the borough surveyor of Walsall (in this section referred to as “the borough surveyor”) and in such position within the limits of deviation by this Act authorised as he shall by writing under his hand reasonably direct and in accordance with plans and sections to be reasonably approved by him in writing before the commencement of the said work and the Company shall in executing the same conform to all reasonable requirements of the borough surveyor and shall pay the corporation any special expenses reasonably and properly incurred by them in relation to such superintendence approval and requirements. Such plans and sections shall be delivered to the borough surveyor not less than fourteen days before the company commence the said work and shall be to suitable scales to clearly show the same. Provided that if the borough surveyor shall not within fourteen days after the plans and sections shall have been so submitted express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof and the Company may forthwith proceed to execute the said work without his superintendence. If the borough surveyor shall express his disapproval thereof the matters in difference shall be settled by arbitration as hereinafter provided:

- (2) The said work shall be constructed and laid in such position at the side or where necessary under the

A.D. 1915.
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metalled portion of the road as the corporation shall under the hand of the borough surveyor reasonably direct :

- (3) The said work shall be executed so as not to stop nor more than is absolutely necessary for the purpose to impede or interfere with the traffic along any road in which the same is laid and the Company shall not without the consent of the borough surveyor open or break up at any one time a greater consecutive length of any such road than one hundred yards nor shall such openings or breakings up be carried out without leaving a clear space of a quarter of a mile between consecutive openings or breakings up unless with the like consent and the said work shall be proceeded with and completed with all possible despatch :
- (4) The Company shall during the progress of the said work take all necessary steps at their own expense for protecting the public using any such road from injury and shall be liable for and indemnify the corporation against all damages and costs that may be incurred consequent upon their neglect or omission to provide such protection and the Company shall also be liable for all damages and costs that may be incurred by the corporation consequent upon any defects in the said work :
- (5) The Company shall upon demand pay to the corporation the reasonable costs which the corporation may incur in the repair and reinstatement of so much of any such road as may be injured or damaged by reason of the traffic being concentrated thereon during the construction alteration or repair of the said work or any part or parts thereof :
- (6) The corporation shall not except in the case of their negligence be liable for any claim for damages in respect of any injury which may be caused to the said work through the reasonable and proper use by the corporation of any steam roller scarifier or other similar appliance not exceeding fifteen tons in weight :

(7) Nothing herein contained shall in any way limit or A.D. 1915.

affect the powers of the corporation to raise drain widen or reconstruct any such road (otherwise than for the purposes of or by reason of the diversion of the same) in the same manner as they might have raised drained widened or reconstructed any such road if this Act had not been passed without making any compensation to the Company for any expense or loss to which the Company may be put in consequence of the exercise by the corporation of such powers and in the event of any such road being raised drained widened or reconstructed (otherwise than as aforesaid) the Company shall at their own expense and within such reasonable time as the borough surveyor may prescribe alter the position of the said work and replace the same to the reasonable satisfaction of the borough surveyor Provided that before such raising draining widening or reconstruction of any such road shall be commenced the corporation shall give one month's notice in writing to the Company of their intention to carry out such works and shall afford all reasonable facilities for temporarily carrying the said work along any such road so as not to interrupt the continuous supply of water The said work so far as the same is laid in or under any road repairable by the corporation shall be constructed of such strength as to support the weight of any heavy traffic without injury:

(8) If in the exercise of the powers of this Act any road repairable by the corporation is broken up by the Company or any culvert drain pipe or other property of the corporation is damaged by the Company the Company shall carry out their works in such road with all practicable speed and shall forthwith repair such road culvert drain pipe or other property to the reasonable satisfaction of the borough surveyor and if the same is not so repaired the corporation may cause any reasonable repairs to be done and may charge the cost against the Company and the same shall be a debt due from the Company to the corporation:

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- (9) The Company shall to the reasonable satisfaction of the borough surveyor keep the portion of any road repairable by the corporation which shall be broken up by the Company for the purpose of constructing laying renewing or repairing the said work in good repair for twelve months after replacing and making good the same and if at any time during the said period the Company shall in the opinion of the borough surveyor neglect to keep any such portion of road in good repair the corporation on giving seven days' previous notice in writing to the Company may carry out any reasonable repairs and the corporation shall be entitled to recover the costs thereof from the Company :
- (10) The Company shall be answerable for all accidents damages and injuries happening through or resulting from the act or default of the Company their contractors or servants by reason or in consequence of the said work and in particular by reason of the carriageway or footway of any road repairable by the corporation which the Company may break up for the purposes of the said work not being properly reinstated or repaired or kept so reinstated or repaired by them as to prevent subsidence of the surface and shall save harmless the corporation their officers and servants from all damages and costs in respect of such accidents damages and injuries The liability under this section shall only cease from the date of a certificate in writing given by the borough surveyor to the effect that the road or the portion thereof damaged or interfered with as aforesaid by the Company has been properly reinstated and repaired :
- (11) If by reason of the construction or of the renewal or repair of the said work the corporation shall at any time necessarily incur any cost in respect of the repair renewal or reconstruction of the tramways of the corporation or the roads in which the tramways are situate or any additional cost in respect of any such matters by reason of such work being in such road the Company shall repay to the corporation such cost and the same may be recovered in default of payment in any court of competent jurisdiction :

- (12) If any difference shall arise between the corporation and the Company touching anything to be done or not to be done under the provisions of this section such difference shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either of the parties in difference. A.D. 1915.

27. The following provisions for the protection of the London and North Western Railway Company (in this section called "the North Western Company") shall unless otherwise agreed between the North Western Company and the Company have full force and effect (that is to say):—

For protec-
tion of Lon-
don and
North West-
ern Railway
Company.

- (1) The line or lines of pipes (Work No. 4) by this Act authorised shall be carried over the Cannock Branch Railway of the North Western Company by a bridge supported on suitable piers in such positions within the limits of deviation authorised by this Act as may be reasonably approved by the principal engineer of the North Western Company and so as in no way to interfere with the bridge numbered on the deposited plans 2 in the county borough of Walsall and such bridge for carrying the line of pipes shall have a clear headway throughout of fifteen feet above the upper surface of the rails of the said railway at the said point of crossing and the Company shall for ever maintain the said headway above the level of the existing level of the rails and the said line or lines of pipes (Work No. 4) shall where the same is carried over the said Cannock Branch Railway and for twenty-five feet on each side thereof be constructed and maintained by means of materials to be reasonably approved by the said principal engineer:
- (2) In carrying the said line or lines of pipes (Work No. 4) over the said Cannock Branch Railway and under the Grand Junction Railway of the North Western Company as also in effecting the maintenance repairs and renewals of the said line or lines of pipes at the points aforesaid the same and all works forming part thereof shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer of the North Western Company and (except in cases of emergency) before

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commencing any such works the Company shall deliver to the said principal engineer plans sections and specifications of the works proposed to be executed and such plans sections and specifications shall be delivered at least fourteen days before the commencement of any such work and if at the expiration of fourteen days from such delivery of the plans sections and specifications the said principal engineer shall not disapprove the same he shall be deemed to have approved thereof and if any difference shall arise concerning the said plans sections and specifications such difference shall unless otherwise agreed be settled by arbitration in manner hereinafter mentioned and all such works shall when commenced be completed with due despatch in accordance with plans sections and specifications so approved or settled as aforesaid and shall be executed by and in all things at the expense of the Company and so as not to cause any injury to the said railways works lands or property or interruption to the passage or conduct of the traffic over the said railways and if by the execution of such works any injury shall arise to the said railways works lands or property or interruption to such traffic the Company shall make full compensation to the North Western Company in respect of such injury or interruption :

(3) In carrying the said line or lines of pipes (Work No. 4) along Broad Lane the same shall be laid so as to interfere as little as may be with the construction of the authorised Wolverhampton and Cannock Chase Light Railway of the North Western Company and in accordance with plans and sections to be submitted to and reasonably approved by the said principal engineer or in case of difference settled by arbitration as hereinafter provided Provided that if the said principal engineer shall not disapprove the said plans and sections within fourteen days from the submission thereof he shall be deemed to have approved the same :

(4) The Company shall at all times maintain the said line or lines of pipes and all works forming part thereof

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where the same are carried across the railways works or property of the North Western Company in substantial repair and good order and condition to the reasonable satisfaction of the said principal engineer and if and whenever the Company fail so to do the North Western Company may make and do all such works and things as may be reasonably requisite in that behalf and the expenditure so reasonably incurred by the North Western Company shall be repaid to them by the Company :

- (5) If at any time hereafter the North Western Company shall require to make any alterations of or to widen the said railways or works or to increase the railway accommodation where the said line or lines of pipes will cross the same the Company on being required so to do by the North Western Company shall at their own cost make such alterations of and additions to the said line or lines of pipes and all works connected therewith as may in the opinion of the said principal engineer be necessary for facilitating the carrying out of such alterations or widening of the said railways and works or the provision of such increased accommodation as aforesaid :
- (6) If by reason of any works or proceedings of the Company or of their contractors or of their workmen or of the leakage bursting or failure of the said line or lines of pipes or works forming part thereof otherwise than by reason of any act or default of the North Western Company the said railways or any of the works or lands thereof shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their expense and to the reasonable satisfaction of such engineer and in the event of their failing so to do or in case of emergency the North Western Company may do all such works and things as may be reasonably requisite to make good the same and recover the expenditure so reasonably incurred from the Company and if any interruption shall be caused to the traffic of the said railways by reason of any of the works of the Company or of any such leakage bursting or failure as aforesaid the

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Company shall make good and repay to the North Western Company any loss damage or expense which they may sustain or be put to by reason of the construction or such leakage bursting or failure of the said line or lines of pipes or works or in respect of the interruption of the traffic of the said railways:

- (7) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Company shall not without the previous consent of the North Western Company under their common seal purchase or acquire any lands or property of the North Western Company but the Company may purchase and take and the North Western Company shall sell and grant accordingly an easement or right of using so much of the lands or property of the North Western Company as may be necessary for the construction and maintenance of the said line or lines of pipes (Work No. 4):
- (8) The Company shall bear and on demand pay to the North Western Company the reasonable expense of the employment by them during the making or maintenance of the said line or lines of pipes and all works forming part thereof across the said railways and works of a sufficient number of inspectors signalmen or watchmen for inspecting such works and for watching the said railways and the conduct of the traffic thereon with reference to and during the execution and maintenance of such works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Company with reference thereto or otherwise:
- (9) If the said line or lines of pipes (Work No. 4) shall cease to be used by the Company for the space of six consecutive months the Company shall at their own expense take down and remove the said bridge and so much of the said line or lines of pipes as shall have been constructed on or over the property of the North Western Company and restore the site thereof to its original condition in default whereof it

shall be lawful for the North Western Company after giving fourteen days' notice of their intention so to do to the Company to take down and remove so much of the said line or lines of pipes as aforesaid and to restore the site thereof to its original condition without making any compensation to the Company and the expense reasonably incurred by the North Western Company in that behalf shall be repaid to them by the Company:

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- (10) In laying down or executing or in effecting repairs and renewals of any mains pipes or other works under the powers of this Act upon across over under or in any way affecting the railways belonging to the North Western Company or the lands property bridges approaches viaducts stations or other works of the North Western Company connected with such railways or any level crossings over the railways of the North Western Company the same shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer of the North Western Company and (except in cases of emergency) only according to plans to be submitted to and reasonably approved by him or in case of difference settled by arbitration as hereinafter provided. Provided that if the said principal engineer shall not disapprove the said plans within fourteen days from the submission thereof he shall be deemed to have approved thereof. Such works shall be carried out in all things by and at the expense of the Company who also shall restore and make good the roads over any such bridges level crossings and approaches which the North Western Company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any such operations of the Company and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic on such railways. And if any such injury or interruption shall arise from or be in any way owing

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to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works arising otherwise than by reason of any act or default of the North Western Company the Company shall make compensation in respect thereof to the North Western Company :

- (11) If any difference shall arise between the Company and the North Western Company or their respective engineers as to the reasonableness of the plans sections and specifications hereinbefore provided for or otherwise under this section such difference shall be referred to and determined on the application of either party by an engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers.

For protection of
Birmingham
Canal Navigation Com-
pany.

28. The provisions contained in sections 66 to 68 (inclusive) of the Act of 1853 shall so far as they are applicable extend and apply for the protection of the works of the Company of Proprietors of the Birmingham Canal Navigations (in this section called "the canal company") with respect to the works by this Act authorised in the same manner as if such provisions were re-enacted in this Act in reference to such works save and except that nothing in those provisions or this Act contained shall prevent or be construed to prevent the Company from making and maintaining the works by this Act authorised or render it necessary for the Company before proceeding to execute the same or any part or parts thereof or taking or interfering with the property of the canal company for such purpose to obtain the previous consent of the canal company in writing under their common seal.

For protec-
tion of Staf-
fordshire
and Worces-
tershire
Canal Com-
pany.

29. For the protection of the Staffordshire and Worcestershire Canal Company (hereinafter in this section referred to as "the canal company") the following provisions shall have effect unless otherwise agreed between the Company and the canal company (that is to say):—

- (1) If and whenever any diminution shall be proved by the canal company to have taken place in the supply of water to any part of the Staffordshire and Worcestershire Canal (hereinafter in this section referred to as "the canal") situate within a distance of two miles from either of the pumping stations (Works Nos. 1

and 3) by this Act authorised by reason or in consequence of the pumping operations of the Company at the said stations or either of them whether during the construction or after the completion thereof the Company shall upon the request in writing of the canal company afford to the canal company a supply of water equal to the amount of such diminution at such cost as that the total cost to the canal company of obtaining the full supply to the portion of the canal the supply of water to which has been so diminished as aforesaid shall be the same (as nearly as may be) after as before such diminution took place:

- (2) For the purpose of affording a supply to the canal under the immediately preceding subsection the Company may supply water beyond the limits of supply and may carry out all works whether within or beyond such limits as may be necessary for that purpose:
- (3) If the Company do not afford such supply to the canal company as aforesaid they shall make compensation in money to the canal company for such diminution the amount of such compensation to be settled in case of difference by arbitration in manner provided by this section:
- (4) If and whenever any leakage shall be shown to have occurred through the bed of the canal within a distance of two miles from either of the said pumping stations by reason or in consequence of the pumping operations of the Company at the said stations or either of them whether during the construction or after the completion thereof or if and whenever by reason or in consequence of such pumping operations as aforesaid any injury or damage by subsidence shall be caused within the distance aforesaid to any part of the canal or to the towing-path locks lock-houses or other works of the canal such leakage injury or damage shall be forthwith from time to time amended and repaired by the canal company at the cost in all things of the Company including if necessary the rebuilding of the locks puddling the canal and raising the towing-path:

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- (5) The canal company shall give notice to the Company of any works necessary for amending and repairing any such leakage injury or damage and in case of any difference between the Company and the canal company as to such leakage injury or damage being due to or caused by the pumping operations of the Company or as to the necessity for the said works or the mode of executing the same the matter in difference shall be determined by arbitration in manner hereinafter provided Provided that in cases of emergency when danger or interruption of traffic may result the canal company's engineer may proceed forthwith with the works in his discretion on such notice being given :
- (6) If such leakage as is mentioned in subsection (4) of this section shall be shown to have occurred the Company shall compensate the canal company for loss of tolls owing to interruption of traffic during the periods necessary for testing to ascertain the fact of such leakage and for executing the works of amendment and repair referred to in the said subsection the amount of such compensation to be determined by arbitration in manner provided by this section :
- (7) The canal company shall afford the officers servants or other representatives of the Company at all reasonable times access to the canal or the source of supply thereof in respect of which any claim could be made under this section for the purpose of ascertaining particulars thereof and the level of water therein :
- (8) The well and borehole of Work No. 1 and of Work No. 3 shall be effectually lined or cased by the Company for such a depth and in such a manner as will secure that in the case of the well (Work No. 1) no water shall be drawn into the well or borehole from any stratum above the lower half of the Keuper sandstone and in the case of the well (Work No. 3) no water shall be drawn into the well or borehole from the upper portion of the Bunter sandstone :
- (9) Any question or dispute arising under this section shall be referred to and determined by arbitration in

manner provided by the Arbitration Act 1889 or any statutory modification thereof for the time being in force.

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30. The following provisions for the protection of the Staffordshire and Worcestershire Canal Company (in this section called "the canal company") shall unless otherwise agreed between the Company and the canal company have effect (that is to say):—

For further protection of Staffordshire and Worcestershire Canal Company.

(1) The line or lines of pipes (Work No. 4) by this Act authorised shall be carried over the Staffordshire and Worcestershire Canal (hereinafter in this section referred to as "the canal") by means of the bridge in the parish of Brewood by which the Stafford and Wolverhampton road is carried over the canal in such position and manner as may be reasonably approved by the engineer of the canal company and so as in no way to injure the said bridge and so that no part of the said line or lines of pipes in crossing the canal and the towing-path thereof shall be at a less height than ten feet above the weir level of the canal at the said bridge:

(2) In carrying the said line or lines of pipes (Work No. 4) over the canal at the point aforesaid as also in effecting the maintenance repairs and renewals thereof the same and all works thereof shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the canal company and (except in cases of emergency) before commencing any such works the Company shall deliver to the said engineer plans sections and specifications of the works proposed to be executed and such plans sections and specifications shall be delivered at least fourteen days before the commencement of any such works and if at the expiration of fourteen days from such delivery of the plans sections and specifications the said engineer shall not disapprove the same he shall be deemed to have approved thereof and if any difference shall arise concerning the said plans sections and specifications such difference shall unless otherwise agreed be settled by arbitration in manner hereinafter mentioned and all such works shall when commenced be

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completed with due despatch in accordance with plans sections and specifications so approved or settled as aforesaid and shall be executed by and in all things at the expense of the Company and so as not to cause any injury to the said bridge or to the canal or any of the works thereof or other property of the canal company or interruption to the passage or conduct of the traffic on the canal or the towing-path thereof and if by the execution of such works any injury shall be caused to the said bridge canal works or property or interruption to such traffic the Company shall make full compensation to the canal company in respect of such injury or interruption:

- (3) The Company shall at all times maintain the said line or lines of pipes and all works forming part thereof where the same are carried across the canal works or property of the canal company in substantial repair and good condition to the reasonable satisfaction of the said engineer and if and whenever the Company fail so to do the canal company may make and do all such works and things as may be reasonably requisite in that behalf and the expenditure so reasonably incurred by the canal company shall be repaid to them by the Company:
- (4) If at any time hereafter the canal company shall desire to alter or reconstruct the said bridge or to widen the said canal or the towing-path thereof at or near the said bridge the Company shall on being required so to do by the canal company at their own cost make such alterations in the position of the said line or lines of pipes or if necessary remove the same in order to permit of the works aforesaid being carried out by the canal company and shall at the like expense relay the said line or lines of pipes in such position on the altered or reconstructed bridge and the provisions of this section shall apply to the said laying and to the said line or lines of pipes when so relaid:
- (5) If by reason of any works or proceedings of the Company or of their contractors or of their workmen or

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of the leakage bursting or failure of the said line or lines of pipes or works forming part thereof otherwise than by reason of any act or default of the canal company the canal or any of the works thereof or other property of the canal company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their expense and to the reasonable satisfaction of such engineer and in the event of their failing so to do or in case of emergency the canal company may do all such works and things as may be reasonably requisite to make good the same and recover the expenditure so reasonably incurred from the Company and if any interruption shall be caused to the traffic on the canal by reason of any of the works of the Company or of any such leakage bursting or failure as aforesaid the Company shall make good and repay to the canal company any loss damage or expense which they may sustain or be put to by reason of the construction or such leakage bursting or failure of the said line or lines of pipes or works or in respect of the interruption of the traffic on the canal:

- (6) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Company shall not without the previous consent of the canal company under their common seal purchase or acquire any lands or property of the canal company but the Company may purchase and take and the canal company shall sell and grant accordingly such an easement or right as may be necessary for the construction and maintenance of the said line or lines of pipes over the canal in manner aforesaid:
- (7) If any difference shall arise between the Company and the canal company or their respective engineers under this section such difference shall be referred to and determined on the application of either party by an engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers.

31. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the Cannock

For protec-
tion of Can-
nock Rural

[Ch. lxx.] *South Staffordshire Waterworks* [5 & 6 GEO. 5.]
Act, 1915.

A.D. 1915. Rural District Council (in this section referred to as "the council") shall except so far as may be otherwise agreed between the council and the Company apply and have effect to and in respect of any works executed by the Company under the powers of this Act (that is to say):—

District
Council.

- (1) The Company shall not under the powers of this Act supply water nor shall they exercise or be subject to any of the powers and duties of this Act within the parish of Cheslyn Hay unless and until the council shall have given not less than six months' notice in writing to the Company under the common seal of the council to give a supply of water within the whole of the area of that parish and as from the thirty-first day of March or the thirtieth day of September next following the expiration of such notice the Company shall be entitled to exercise the powers and shall be subject to the duties of this Act and the Acts incorporated therewith within that parish :
- (2) Immediately after the thirty-first day of March or the thirtieth day of September next after the expiration of six months from the service of the notice referred to in subsection (1) of this section the council shall sell to the Company and the Company shall purchase all water mains pipes works fittings meters and apparatus belonging to the council and used by them for the supply of water in any part of the said parish of Cheslyn Hay at such price as may be agreed or as failing agreement shall be determined by arbitration :
- (3) Until the sale and purchase mentioned in subsection (2) hereof nothing contained in this Act shall prejudice or affect the rights and powers of the council in regard to the supply of water in the parish of Cheslyn Hay and until the said sale and purchase nothing contained in this Act shall prejudice or affect their rights under the agreement dated the twenty-ninth day of February one thousand nine hundred and twelve and made between the Company of the one part and the council of the other part :

Provided that as from the said sale and purchase that agreement shall be by virtue of this Act annulled but without prejudice to the rights of either party thereunder which shall have accrued : A.D. 1915.

- (4) Immediately after the thirtieth day of September one thousand nine hundred and fifteen the council shall sell to the Company and the Company shall purchase all water mains pipes works fittings meters and apparatus belonging to the council and used by them for the supply of water in any part of the parishes of Great Wyrley and Penkridge respectively at such price as may be agreed or as failing agreement shall be determined by arbitration :
- (5) As from the thirtieth day of September one thousand nine hundred and fifteen the agreement dated the twenty-fifth day of October one thousand nine hundred and made between the Company of the first part the parish council for the parish of Great Wyrley of the second part and the council of the third part and the agreement dated the thirtieth day of June one thousand nine hundred and ten and made between the Company of the one part and the council of the other part shall be by virtue of this Act annulled but without prejudice to the rights of any party thereunder which shall have then accrued :
- (6) The Company shall not without the previous consent in writing of the council under the hand of their clerk which consent shall not be unreasonably withheld (A) raise lower or divert any district road repairable by the council nor (B) interfere with the structure of any bridge or approach repairable by or under the control of the council :
- (7) All mains pipes or other works to be laid or constructed in along or across or in any way affecting any such road bridge or approach shall be constructed and laid under the superintendence and to the reasonable satisfaction of the surveyor of the council (in this section referred to as "the surveyor") and in such position as he shall by writing under his hand reasonably direct and in accordance with plans and

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sections to be reasonably approved by him in writing before the commencement of the work and the Company shall in executing any such work conform to all reasonable requirements of the surveyor and shall pay the council any special expenses incurred by them in relation to such superintendence approval and requirements :

All such plans and sections shall except in cases of emergency be delivered to the surveyor not less than fourteen days before the Company commence any of such works :

The plans shall as respects any bridge be on a scale of not less than an inch to four feet and as respects a road on a scale of not less than $\frac{1}{2500}$ and the sections shall be to suitable scales to clearly show the proposed works :

Provided that if the surveyor shall not within fourteen days after the same shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof and the Company may forthwith proceed to execute the works specified without his superintendence and further that if he shall express his disapproval thereof the matters in difference shall unless the council and the Company otherwise agree be settled by arbitration as hereinafter provided :

- (8) All mains pipes or other works shall where practicable be constructed and laid in such position at the side or where necessary under the metalled portion of the road as the council shall under the hand of their surveyor direct :

For the purpose of carrying any mains or pipes over any such bridge the Company shall if reasonably required by the surveyor of the council so to do either carry their mains or pipes over the bridge in outer pipes or watertight channels drained clear of the bridge structure or shall take such mains or pipes on the outside of the bridge in such manner as may be reasonably approved by the surveyor :

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If in the opinion of the surveyor it is necessary that any such bridge should be strengthened for the purpose of carrying or supporting such pipes the Company shall pay the reasonable expenses incurred by the council in relation to such strengthening and the Company shall also be responsible for any expenses incurred by the council in making good any damage which may be incurred to any such bridge or approach by reason of the pipes or works of the Company being laid or constructed on or near thereto :

- (9) All works shall be executed so as not to stop nor more than is absolutely necessary for the purpose to impede or interfere with the traffic over or along any such road bridge or approach and the Company shall not without the consent of the surveyor open or break up at any one time a greater consecutive length of any such road than one hundred yards nor shall such openings or breakings up be carried out without leaving a clear space of a quarter of a mile between consecutive openings or breakings up unless with the like consent and all such works shall be proceeded with and completed with all possible despatch :
- (10) The Company shall during the progress of the works take all necessary steps at their own expense for protecting the public using any such road bridge or approach from injury and shall be liable for and indemnify the council against all damages and costs that may be incurred consequent upon their neglect or omission to provide such protection and the Company shall also be liable for all damages and costs that may be incurred by the council consequent upon any defects in any of the mains pipes or other works of the Company :
- (11) The Company shall upon demand pay to the council the reasonable costs which the council may incur in the repair and reinstatement of so much of any such road including the roadway over any such bridge and approach upon or in which any mains pipes or other works are laid as may be injured or damaged by

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reason of the traffic being concentrated thereon during the construction alteration or repair of the said mains pipes or other works or any part or parts thereof:

- (12) The council shall not except in the case of their negligence be liable for any claim for damages in respect of any injury which may be caused to any mains pipes or other works belonging to the Company through the reasonable and proper use by the council of any steam roller scarifier or other similar appliance not exceeding fifteen tons in weight:
- (13) Nothing herein contained shall in any way limit or affect the powers of the council to raise drain widen or reconstruct any such road (otherwise than for the purposes of or by reason of the diversion of the same) or to remove alter widen raise or rebuild any such bridge or approach in upon across or alongside or near to which such mains pipes or other works are laid in the same manner as they might have raised drained removed altered widened reconstructed or rebuilt any such road bridge or approach if this Act had not been passed without making any compensation to the Company for any expense or loss to which the Company may be put in consequence of the exercise by the council of such powers and in the event of any such road bridge or approach in alongside or near to which the mains pipes or other works are laid being raised drained removed altered widened reconstructed or rebuilt (otherwise than as aforesaid) the Company shall at their own expense and within such reasonable time as the surveyor may prescribe alter the position of such mains pipes or other works and replace the same to the reasonable satisfaction of the surveyor:

Provided that before such removal alteration widening reconstruction or rebuilding of any such road bridge or approach shall be commenced the council shall (except in cases of emergency) give one month's notice in writing to the Company of their intention to carry out such works and shall afford all reasonable facilities for temporarily carrying the

mains pipes or other works along such road or across or under the stream so as not to interrupt the continuous supply of water : A.D. 1915.

All works of the Company so far as laid in or under any such road shall be constructed of such strength as to support the weight of any heavy traffic without injury :

- (14) If any such road is broken up by the Company for the purposes of the undertaking or any bridge under the jurisdiction of or repairable by the council or any culvert drain pipe or other property of the council is damaged by the Company the Company shall repair such road bridge culvert drain pipe or other property to the reasonable satisfaction of the surveyor and if the same is not so repaired the surveyor may cause the necessary repairs to be done and may charge the cost against the Company and the same shall be a debt due from the Company to the council :
- (15) The Company shall to the reasonable satisfaction of the surveyor keep the portion of any such road which shall be broken up by the Company for the purpose of constructing laying renewing or repairing any works by this Act authorised in good repair for twelve months after replacing and making good the same and if at any time during the said period the Company shall neglect to keep any such portion of road in good repair the surveyor on giving seven days' previous notice in writing to the Company may carry out any repairs and the council shall be entitled to recover the costs thereof from the Company :
- (16) The Company shall be answerable for all accidents damages and injuries happening through or resulting from the act or default of the Company their contractors or servants by reason or in consequence of any works of the Company and in particular by reason of the carriageway or footway of any such road or bridge or the approaches thereto which the Company have power to break up or which the Company are under obligation to repair not being properly reinstated or repaired or kept so reinstated

A.D. 1915.

or repaired as to prevent subsidence of the surface by them and shall save harmless the council their officers and servants from all damages and costs in respect of such accidents damages and injuries :

The liability under this section shall only cease from the date of a certificate in writing given by the surveyor to the effect that the road or portion thereof damaged by the Company has been properly reinstated and repaired :

- (17) If any difference shall arise between the council and the Company touching anything to be done or not to be done under the provisions of this section such difference shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either of the parties in difference and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Power to
raise addi-
tional
capital.

32. In addition to the capital already authorised to be raised by the Company they may raise for the purposes of the undertaking any further sums not exceeding in the whole one hundred and fifty thousand pounds by the creation and issue of new ordinary stock or new preference stock or partly by one mode and partly by the other as the Company shall think fit (in this Act referred to as "the additional capital") Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater amount of the additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred and fifty thousand pounds Provided also that not more than half of such additional capital shall be raised under the powers of this section by the creation and issue of preference stock.

Additional
capital to be
part of
general
capital.

33. The additional capital shall form part of the general capital of the Company and save as is otherwise by this Act provided the ordinary and preference stock therein and the holders thereof respectively in proportion to the amount of their stock shall be entitled and subject to the like rights of voting and all other rights qualifications privileges provisions forfeitures and liabilities whatsoever in all respects as if such ordinary or preference stock as the case may be were part of the now

existing preference or ordinary stock of the Company of the same class or description. A.D. 1915.

34. Except as may be otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new stock to which a preferential dividend shall be assigned. Restriction
as to votes in
respect of
preferential
stock.

35. The Company shall not in respect of any one year pay out of their profits any larger dividend on the additional capital or on any part thereof than a dividend at the rate of seven pounds per centum per annum on any part of such capital which is for the time being actually paid up or represented by fully-paid ordinary stock or than a dividend at the rate of five pounds per centum per annum on any such part of such additional capital issued as preference capital as may be for the time being actually paid up or represented by fully-paid preference stock. Limitation of
dividends.

36.—(1) All ordinary and preference stock created under the powers of this Act and all ordinary or preference stock hereafter created or disposed of under the Order of 1901 or the Act of 1909 shall be issued in accordance with the provisions of this section. New stock
to be sold by
auction or
tender.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of each local authority (other than a county council not being the council of a county borough) within the limits of supply and to the secretary of the Birmingham Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price which may be disclosed by the Company shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before

A.D. 1915.

the day of auction or last day for the reception of tenders as the case may be :

- (c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds :
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that if any offer by tender of any holder or holders of stock in the Company be the same in amount as any offer made by any other person the offer of such holder or holders of stock shall be accepted in preference In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of ordinary or preference stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of

Trade stating the total amount of the stock sold the total amount A.D. 1915.
obtained as premium (if any) and the highest and lowest prices
obtained for the stock.

37. All moneys raised under this Act including premiums Application
shall be applied only to purposes to which capital is properly of money.
applicable and any sum of money which may arise by way of
premium from the issue of stock under the provisions of this
Act shall not be considered as part of the capital of the Company
entitled to dividend but shall be deemed to be part of the paid
up capital of the Company for the purpose of determining the
powers of the Company to raise money by borrowing.

38. The Company may subject to the provisions of this Power to
Act borrow on mortgage of the undertaking any sum or sums borrow.
not exceeding in the whole one-third part of the amount of
the additional capital which at the time of borrowing has been
raised under the powers of this Act But no sum shall be
borrowed in respect of any capital so raised until the Company
have proved to a justice of the peace before he gives his certi-
ficate under the fortieth section of the Companies Clauses
Consolidation Act 1845 that the whole of the stock at the time
issued together with the premium (if any) realised on the sale
thereof has been fully paid up.

39. Section 57 of the Act of 1909 is hereby repealed but For appoint-
without prejudice to any appointment heretofore made or to ment of
any proceedings pending at the commencement of this Act and receiver.
in lieu thereof the mortgagees of the undertaking may enforce
payment of arrears of interest or principal or principal and
interest due on their mortgages by the appointment of a receiver
and in order to authorise the appointment of a receiver in respect
of arrears of principal the amount owing to the mortgagees by
whom the application for a receiver is made shall not be less
than ten thousand pounds in the whole.

40. The Company may create and issue debenture stock Debenture
subject to the provisions of Part III. of the Companies Clauses stock.
Act 1863 and of section 25 of the Act of 1893.

41. If any money is payable to a stockholder or mortgagee Receipt in
or debenture stockholder being a minor idiot or lunatic the case of per-
receipt of the guardian or committee of his estate shall be a sons not sui
sufficient discharge to the Company. juris.

A.D. 1915.

Priority of
mortgages
and debenture stock
over other
debts.

42. All money raised or to be raised by the Company on mortgage or debenture stock under the provisions of the South Staffordshire Waterworks Acts and Order 1853 to 1915 shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of the undertaking or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

As to exercise of capital powers of Act.

43. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

As to appointment of proxies.

44. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder or stockholder of the Company duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stockholder the necessary form of proxy Provided that the instrument appointing the attorney shall be transmitted to the secretary of the Company at the same time as the instrument appointing the proxy.

Joint holders.

45. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any share or stock in the capital of the Company any one of those persons may vote at any meeting (at which holders of similar shares or stock are entitled to vote) either personally or by proxy in respect of the share or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by

A.D. 1915.

proxy that one of the said persons so present whose name stands first on the register in respect of the share or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any share or stock stands shall for the purposes of this section be deemed joint holders thereof.

46. Notwithstanding anything in the Companies Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract Provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.

As to qualification of directors.

47.—(1) Any local authority the district under whose jurisdiction is in whole or in part within the limits of supply may give and enter into any guarantee or contract for securing payment to the Company of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such authority and the Company for the purpose of or with respect to the providing or laying down by the Company of any main pipe or works for the supply within any part of such district which is within the limits of supply by means of such main pipe or works.

Guarantees by local authorities.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to

A.D. 1915. — the powers of such authority they may incur expenditure and any such authority may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Company under this section.

Company to
enlarge
mains in
certain
boroughs.

48.—(1) The Company shall within two years after the passing of this Act or within eighteen months after they are able to raise or borrow the necessary money expend in the laying of enlarged mains with proper junctions within the borough of Wednesbury a sum of not less than two thousand pounds and in laying enlarged mains with proper junctions within the borough of Sutton Coldfield a sum of not less than three thousand five hundred pounds and such mains shall be laid in such streets or other places under the control of the corporations of those boroughs respectively as shall be agreed between the Company and the said respective corporations and any difference as to the dimensions of such mains or as to the situations in which the same are to be laid or as to the junctions shall be determined by an arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of either of the parties in difference Provided always that the said respective corporations shall at all reasonable times have free access to and may take copies of any map showing the lines and dimensions of mains and pipes belonging to the Company within their respective boroughs.

(2) The Company shall use their best endeavours to obtain any consent of the Treasury which may be needed to enable them to raise or borrow money at the earliest possible date.

Supply of
water for
washing car-
riages &c. by
hose pipes.

49. Water supplied by the Company to any premises for domestic purposes may subject to the Company's regulations as to waste and misuse of water be used for washing carriages or motor cars and for watering gardens or for any of such purposes by means of a hose-pipe or hose-pipes or other similar apparatus and the Company may in respect of such user for such purposes charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

Recovery of
penalties &c.

50. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable thereunder or any byelaw made in pursuance thereof may be prosecuted and recovered in

a summary manner Provided that costs or expenses except A.D. 1915.
such as are recoverable along with a penalty shall not be
recovered as penalties but may be recovered summarily as civil
debts.

51. Proceedings for the recovery of any demand made Recovery of
under the authority of this Act or any incorporated enactment demands.
whether provision is or is not made for the recovery in any
specified court or manner may be taken in any county court
having otherwise jurisdiction in the matter provided that the
demand does not exceed the amount recoverable in that court
in a personal action.

52. No justice or judge shall be disqualified from acting Judges and
in the execution of the South Staffordshire Waterworks Acts justices not
and Order 1853 to 1915 by reason of his being liable to the disqualified
payment of any water rate under any of those Acts or that by liability
Order. to water
rate.

53. Penalties imposed under the South Staffordshire Water- Penalties not
works Acts and Order 1853 to 1915 and the Acts wholly or in cumulative.
part incorporated therewith for one and the same offence shall
not be cumulative.

54. The Company may from time to time apply for or Power to
towards all or any of the purposes of this Act and for or Company to
towards the general purposes of the undertaking being in each apply their
case purposes to which capital is properly applicable any sums funds.
of money which they have already raised or are authorised to
raise under and by virtue of the South Staffordshire Waterworks
Acts and Order 1853 to 1913 or which may be in their
possession or under their control and which are not required
for the purposes to which they are by those Acts or that Order
made specially applicable.

55. All costs charges and expenses of and incident to the Costs of Act.
preparing for obtaining and passing of this Act or otherwise in
relation thereto shall be paid by the Company.

Printed by EYRE and SPOTTISWOODE, LIMITED,
FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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